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File No.: EXP202304931

RESOLUTION OF TERMINATION OF THE PROCEDURE DUE TO VOLUNTARY PAYMENT

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On September 20, 2023, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against B.B.B. (hereinafter, the respondent), through the Agreement that is transcribed:

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File No.: EXP202304931

AGREEMENT TO INITIATE SANCTIONING PROCEDURE

From the actions taken by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on March 21, 2023. The complaint is directed against B.B.B. with NIF ***NIF.1 (hereinafter, the respondent). The reasons for the complaint are as follows:

“(…) the respondent has installed a video surveillance system in their home that, due to its location and orientation, is capable of capturing images of areas outside the respondent's home and more specifically areas belonging to the complainant's home, adjacent to the respondent's home.

It provides a location plan of the cameras and photographs of three of them taken from the complainant's property (Annex I).

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), this complaint was forwarded to the respondent on April 19, 2023, for them to analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in the data protection regulations.

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The transfer, which was carried out in accordance with the provisions established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was notified in due time and form as evidenced by the acknowledgment of receipt in the file.

THIRD: On May 25, 2023, a written response was received from the respondent regarding the facts presented:

“As for the number of existing cameras, a document numbered ONE is attached to this block of documents, with the aim of proving the number of cameras, as well as the field of vision that can be appreciated on the mobile device of the responsible party.

The purpose and reason for installing the cameras is solely to protect the property, and there is no other use than that for such purposes, given the increase in thefts in the area taking advantage of the absence of families during work or leisure hours. There is no intention whatsoever to 'spy' or 'control' what neighbors do or any user of the public road, as no camera focuses on neighbors, and regarding the public road, the viewing is the minimum necessary.

I REQUEST THE SPANISH AGENCY FOR DATA PROTECTION: That having presented this document, along with the accompanying documents, it be accepted, considering Mrs. C.C.C. to have complied with the information request made by this Spanish Agency for Data Protection, all with the other legal effects inherent.”

FOURTH: On June 21, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

LEGAL GROUNDS

I

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, by the regulatory provisions issued in its development and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

Following the amendments made to the current LOPDGDD (LO 3/2018, December 5) by Law 11/2023, of May 8, transposing European Union directives in

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regarding the accessibility of certain products and services, migration of highly qualified individuals, taxation, and the digitization of notarial and registry actions; and by which Law 12/2011, of May 27, on civil liability for nuclear damage or damage caused by radioactive materials is amended, the procedural deadline established in Article 64.2 "in fine" is applied to the present procedure.

The procedure shall have a maximum duration of twelve months from the date of the initiation agreement. Upon the expiration of this period, it will lapse, and consequently, the proceedings will be archived.

II

In the present case, the claim dated 21/03/23 is examined, through which the following is conveyed: "installation of video surveillance cameras that may affect the private space of a third party"

Article 5.1 c) of the GDPR states the following: Personal data shall be:

"adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed ('data minimization').

It should be noted that individuals are responsible for ensuring that the installed systems comply with current legislation, demonstrating that they meet all the requirements established by the applicable regulations.

The installation of such devices must include the mandatory informative sign, indicating the purposes and the responsible party for the processing of personal data, if applicable.

In any case, the cameras must be oriented towards the private space, avoiding intimidating neighboring residents with such devices, as well as monitoring transit areas without justified cause.

Moreover, with these types of devices, images of public space cannot be obtained, as this is the exclusive competence of the State Security Forces and Corps, as they are responsible for the prevention of criminal acts and the guarantee of security in the aforementioned public thoroughfare, in accordance with the provisions of Organic Law 4/1997, of August 4, and its implementing regulations.

It is worth noting that even in the case of a "dummy" camera, it must be preferably oriented towards private space, as it is considered that such devices may affect the privacy of third parties, who feel intimidated by the belief that they are subject to permanent recording.

Individuals cannot install devices for obtaining images of public space and/or the transit of third parties, except in cases permitted by the regulations.

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The purpose of such devices must be the security of the property and its inhabitants, avoiding the

infringement of the rights of third parties who may feel intimidated by them.

The cameras must be limited to the protection of the property owned by the holder in such a way that they do not affect the area of third parties who may feel intimidated by them, as it affects their free transit area.

III

In accordance with the evidence available at this moment of the initiation agreement of the sanctioning procedure, and without prejudice to what may result from the instruction, it is considered that the claimed party has a camera system that may affect the rights of third parties without justified cause. The known facts could constitute an infringement, attributable to the claimed party, classified under Article 5.1 c) of the GDPR.

Article 72, paragraph 1, letter a) establishes a statute of limitations of three years for "infringements that constitute a substantial violation of the articles mentioned therein and, in particular, the following: "a) The processing of personal data violating the principles and guarantees established in Article 5 of Regulation (EU) 2016/679.

IV

Article 83.5 of the GDPR states the following: "Infringements of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of a company, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) The basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9 (...)"

When justifying the sanction, it is taken into account that the evidence provided shows the presence of devices with poor orientation, which indicates initial negligence in the described conduct, therefore a sanction of €300 is agreed upon for the infringement of Article 5, a sanction situated at the lower end of the scale for such behaviors.

V

If the infringement is confirmed, it may be agreed to impose on the responsible party the adoption of appropriate measures to adjust their actions to the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, according to which each supervisory authority may "order the controller or processor to ensure that the processing operations comply with the provisions of this regulation."

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Regulation, when appropriate, in a specific manner and within a specified timeframe...". The imposition of this measure is compatible with the sanction consisting of an administrative fine, as provided in Article 83.2 of the GDPR.

It is noted that failure to comply with a possible order to adopt measures imposed by this body in the sanctioning resolution may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its Articles 83.5 and 83.6, which may lead to the initiation of further administrative sanctioning proceedings.

The party being claimed against must again provide, in an orderly and clear manner, a screenshot (date and time) of what is captured by all the cameras, proceed to number them, and provide photographs duly explaining what is captured by these, without prejudice to any legal arguments they deem appropriate to make or any other documentation they consider necessary.

Therefore, in light of the above, by the Director of the Spanish Agency for Data Protection,

IT IS AGREED:

FIRST: TO INITIATE SANCTIONING PROCEDURE against B.B.B., with NIF ***NIF.1, for the alleged infringement of Article 5.1 c) GDPR, classified in Article 83.5 GDPR.

SECOND: TO APPOINT D.D.D. as the instructor and E.E.E. as the secretary, indicating that they may be challenged, if applicable, in accordance with the provisions of Articles 23 and 24 of Law 40/2015, of

October 1, on the Legal Regime of the Public Sector (LRJSP).

THIRD: TO INCORPORATE into the sanctioning file, for evidentiary purposes, the complaint filed by the complainant and its documentation, as well as the documents obtained and generated by the General Subdirectorate of Data Inspection in the proceedings prior to the initiation of this sanctioning procedure.

FOURTH: THAT for the purposes provided in Article 64.2 b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the sanction that may correspond would be €300, without prejudice to what results from the instruction.

FIFTH: TO NOTIFY this agreement to B.B.B., with NIF ***NIF.1, granting a hearing period of ten working days for them to formulate allegations and present the evidence they deem appropriate. In their written allegations, they must provide their NIF and the file number that appears in the heading of this document.

If no allegations are made against this initiation agreement within the stipulated period, it may be considered a proposal for resolution, as established in Article 64.2.f) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP).

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In accordance with the provisions of Article 85 of the LPACAP, they may acknowledge their responsibility within the period granted for formulating allegations to this initiation agreement; this will entail a reduction of 20% of the sanction that may be imposed in this procedure. With the application of this reduction, the sanction would be set at €240, resolving the procedure with the imposition of this sanction.

Similarly, they may, at any time prior to the resolution of this procedure, voluntarily pay the proposed sanction, which will imply a reduction of 20% of its amount. With the application of this reduction, the sanction would be set at €240, and its payment will imply the termination of the procedure, without prejudice to the imposition of the corresponding measures.

The reduction for the voluntary payment of the sanction is cumulative with the one corresponding to the acknowledgment of responsibility, provided that this acknowledgment of responsibility is made within the period granted for formulating allegations to the opening of the procedure. The voluntary payment of the amount referred to in the previous paragraph may be made at any time prior to the resolution. In this case, if both reductions are applicable, the amount of the sanction would be set at €180.

In any case, the effectiveness of either of the two mentioned reductions will be conditioned upon the withdrawal or renunciation of any action or administrative appeal against the sanction.

In the event that they choose to proceed with the voluntary payment of any of the amounts indicated above, €240 or €180, they must make it effective by depositing it into account no. IBAN: ES00 0000 0000 0000 0000 (BIC/SWIFT Code: CAXXXX-XXXX) opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason for the reduction of the amount to which they are entitled.

They must also send the proof of deposit to the General Subdirectorate of Inspection to continue with the procedure in accordance with the amount deposited.

The procedure will have a maximum duration of twelve months from the date of the initiation agreement. After this period, it will expire, and consequently, the file will be archived; in accordance with the provisions of Article 64 of the LOPDGGDD.

Finally, it is noted that in accordance with the provisions of Article 112.1 of the LPACAP, there is no administrative appeal against this act.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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SECOND: On September 27, 2023, the respondent has proceeded to pay the fine in the amount of 180 euros, making use of the two reductions provided for in the previously transcribed Initiation Agreement, which implies the acknowledgment of responsibility.

THIRD: The payment made, within the time granted to submit allegations regarding the opening of the procedure, entails the waiver of any action or appeal in the administrative route against the fine and the acknowledgment of responsibility concerning the facts referred to in the Initiation Agreement.

FOURTH: The previously transcribed Initiation Agreement indicated that, if the infringement were confirmed, it could be agreed to impose on the responsible party the adoption of appropriate measures to adjust their actions to the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, according to which each supervisory authority may "order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified period...".

Having acknowledged the responsibility for the infringement, the imposition of the measures included in the Initiation Agreement is appropriate.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Termination of the procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), under the heading "Termination in sanctioning procedures" provides as follows:

"1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction.

2. When the sanction is solely of a pecuniary nature or when it is possible to impose a pecuniary sanction and another of a non-pecuniary nature but the imposition of the latter has been justified as inappropriate, voluntary payment by the presumed responsible party, at any time prior to the resolution, will imply the termination of the procedure, except regarding the restoration of the altered situation or the determination of compensation for the damages caused by the commission of the infringement.

3. In both cases, when the sanction is solely of a pecuniary nature, the competent authority to resolve the procedure shall apply reductions of at least 20% on the amount of the proposed sanction, which shall be cumulative. The aforementioned reductions must be specified in the notification of initiation of the procedure, and their effectiveness shall be conditioned upon the withdrawal or waiver of any action or appeal in the administrative route against the sanction. The percentage of reduction provided for in this section may be increased by regulation."

In accordance with the above,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE the termination of procedure EXP202304931, in accordance with the provisions of Article 85 of the LPACAP.

SECOND: TO ORDER B.B.B. to notify the Agency within one month of the adoption of the measures described in the legal grounds of the Initiation Agreement transcribed in this resolution.

THIRD: TO NOTIFY this resolution to B.B.B.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative route as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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